

IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF COCHISE

STATE OF ARIZONA,

Plaintiff,

vs.

DANIEL MIRANDA,

Defendant.

GRAND JURY NO. 20210389

CASE NO. CR 202100817

NOTICE TO DEFENDANT OF
SUPERVENING INDICTMENT

IN COCHISE COUNTY JAIL

W Male DOB: 01/15/1980
Eyes: Brown Hair: Black
Hgt.: 6'02 Wgt.: 220 lbs
SSN: 601-78-1910
address: 5 Blacknob View, Bisbee,
AZ 85603

TO DEFENDANT AND DEFENDANT'S ATTORNEY, JOSHUA JONES,

An Indictment has been duly filed in this Court, which accuses:

DANIEL MIRANDA

and charges that in Cochise County:

COUNT 1: Burglary In The First Degree

DANIEL MIRANDA, on or about September 15, 2021, with intent to commit a theft or a felony therein, did enter the residential structure of AM, located at 5 Blacknob View, Bisbee, AZ, while he knowingly possessed a deadly weapon, to-wit: a sword, in violation of A.R.S. §§ 13-1501, 13-1508(A), 13-1507, 13-701, 13-702, and 13-801, a class 2 Felony.

1 The State further alleges that the offense charged in this count is a dangerous felony
2 because the offense involved the use or threatening exhibition of a sword, a deadly weapon,
3 in violation of A.R.S. §§ 13-105 and 13-704.

4
5 **COUNT 2: Armed Robbery**

6 **DANIEL MIRANDA**, on or about September 15, 2021, did in the course of taking
7 property of another from AM's person or immediate presence and against her will, used
8 threats or force against AM, with the intent to coerce surrender of the property or to prevent
9 resistance to **DANIEL MIRANDA**'s taking or retaining the property while **DANIEL**
10 **MIRANDA** was armed with a deadly weapon, in violation of A.R.S. §§ 13-1904(A)(1),
11 13-1901, 13-1902, 13-701, 13-702, 13-704, and 13-801, a class 2 Felony.

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13 **COUNT 3: Robbery**

14 **DANIEL MIRANDA**, on or about September 15, 2021, did take property from
15 AM's person or immediate presence and against her will, used threats or force against A.M.,
16 with the intent to coerce surrender of the property or to prevent resistance to **DANIEL**
17 **MIRANDA**'s taking or retaining A.M.'s property, in violation of A.R.S. §§ 13-1902(A),
18 13-1901, 13-701, 13-702, and 13-801, a class 4 Felony.

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20 **COUNT 4: Aggravated Assault**

21 **DANIEL MIRANDA**, on or about September 15, 2021, using a sword, a deadly
22 weapon or dangerous instrument, intentionally did place AM in reasonable apprehension
23 of imminent physical injury, in violation of A.R.S. §§ 13-1203, 13-1204(A)(2), 13-3105,
24 13-701, 13-702, and 13-801, a class 3 Felony.
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1 The State further alleges that the offense charged in this count is a Domestic
2 Violence offense in violation of A.R.S. §13-3601.

3
4 **COUNT 5: Assault**

5 **DANIEL MIRANDA**, on or about September 15, 2021, intentionally did place AM
6 in reasonable apprehension of imminent physical injury, in violation of A.R.S. §§ 13-
7 1203(A)(2), 13-707, and 13-802, a class 2 Misdemeanor.

8 The State further alleges that the offense charged in this count is a Domestic
9 Violence offense in violation of A.R.S. §13-3601.

10 **COUNT 6: Disorderly Conduct**

11 **DANIEL MIRANDA**, on or about September 15, 2021, intentionally or knowingly
12 did disturb the peace or quiet of a neighborhood, family, or person, to wit: AM, by
13 recklessly handling, displaying, or discharging a sword, in violation of A.R.S. §§ 13-
14 2904(A)(6), 13-701, 13-702, and 13-801, a class 6 Felony.

15 The State further alleges that the offense charged in this count is a Domestic
16 Violence offense in violation of A.R.S. §13-3601.
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